



Republic of the Philippines
Department of Health

ZAMBOANGA CITY MEDICAL CENTER

Dr. Evangelista St., Sta Catalina, Zamboanga City, 7000



August 12, 2026

AFDAL B. KUNTING, MD, MPH, FPCP

Medical Center Chief II
Zamboanga City Medical Center
Zamboanga City

SUBJECT : CLARIFICATION ON THE LETTER OF MULAR MEDICAL DISTRIBUTION, INC. DATED 06 AUGUST 2026 AND SUSTAINING THE BAC DETERMINATION ON THE NON-RESPONSIVENESS OF ITS BID

Sir,

I. Background and Procedural History

The Bids and Awards Committee (BAC) respectfully submits this clarification in relation to the letter dated 06 August 2026 of Mular Medical Distribution, Inc. (Mular) addressed to the Head of the Procuring Entity and entitled "Request for Clarification on the Grounds for Disqualification."

The subject procurement is the Supply and Delivery of Various Medical/Surgical Instruments for FY 2026, Solicitation No. 2606-GOODS-37A, PhilGEPS Reference No. 13078750, with bid opening conducted on 17 July 2026.

Following detailed bid evaluation using the prescribed non-discretionary criterion, the BAC issued a Notice of Disqualification dated 24 July 2026, finding Mular's bid non-responsive for failure to address or provide all required items in the Bidding Documents, particularly the Technical Specifications. Among the express findings was Mular's submission of "Amended Sales Literature/Brochure/Copy of Manual" in lieu of the required "Unamended Sales Literature/Brochure/Copy of Manual."

The Notice, however, did not rest on the sales literature issue alone. It also identified specific technical deficiencies in the bidder's offer under several items, including Items 34, 44, 58, 59 and 66. These included, among others, failure to indicate required reprocessing cycles, failure to specify required components, discrepancies in basket and lid specifications, absence of required dimensions and incomplete technical measurements, and inability to locate the required PTFE evaluation study.

The Notice further informed the bidder of its right to seek reconsideration and expressly stated that a bidder may not submit additional documents to correct defects in the bid submitted.

Mular thereafter filed a Request for Reconsideration, principally asserting that the submitted documents were its own original documents and were not copied or amended, while seeking clarification of the grounds for its disqualification.

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The BAC considered the Request for Reconsideration together with the bid documents, the findings of the Technical Working Group (TWG) and End-User, and the physical characteristics of the submitted sales literature. The BAC thereafter denied the Request for Reconsideration, finding no legal or factual basis to reverse its prior determination.

II. On Mular's Assertion that the Submitted Brochures Were Original Manufacturer-Issued Documents

Mular categorically asserts that all brochures submitted with its bid were original documents officially prepared and issued by Hilbro International (Pvt.) Ltd., and that the brochures were not altered, reproduced, modified, or manipulated by Mular. Mular further states that, as part of its standard bidding procedure, it forwards the Procuring Entity's technical specifications to Hilbro International for evaluation and confirmation, after which Hilbro allegedly prepares the corresponding product brochures.

The BAC has taken this assertion into consideration.

However, the issue before the BAC was not merely whether Mular had a business relationship with Hilbro or whether Mular ordinarily obtains product literature from Hilbro. The issue was whether the specific sales literature submitted as part of Mular's bid complied with the express requirement under Bid Data Sheet Clause 12.1 (vii) for unamended sales literature/brochure/copy of manual, and whether the document submitted reliably established conformity with the Technical Specifications.

During the evaluation of the actual document submitted with the bid, the BAC, in concurrence with the TWG and End-User findings, observed characteristics that raised material concerns as to whether the document constituted the required unamended manufacturer's publication. These included the inclusion of the name "Zamboanga City Medical Center", product photographs exhibiting inconsistent scale, borders and resolution, a layout corresponding to the sequence of the Procuring Entity's technical specifications, and item numbers corresponding to the specific bidding project.

The BAC therefore did not disregard Mular's assertion of authenticity. Rather, the BAC evaluated that assertion against the physical characteristics of the document actually submitted with the bid.

The subsequent assertion of the bidder, standing alone, does not negate those objective characteristics.

III. On the Assertion that the Brochures Were Specifically Prepared for Each Procurement

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Mular further explains that the brochures submitted were not generic marketing materials, but were allegedly prepared by Hilbro specifically for each hospital or government institution participating in a particular procurement, in order to ensure that the information corresponds to the procuring entity's technical specifications.

The BAC notes that this explanation is significant because it effectively characterizes the submitted literature as procurement-specific or customized literature.

However, this assertion does not, by itself, establish compliance with the Bidding Documents' express requirement for unamended sales literature.

The BAC's concern was not simply that the submitted brochure contained information relevant to ZCMC's procurement. Rather, the concern arose from the fact that the document submitted with the bid was a procurement-specific document containing insertions, restructuring, and other features that materially distinguished it from the manufacturer's unamended publication.

Mular's explanation that the document was specifically prepared for the procurement does not, by itself, resolve whether such a customized document satisfies the express requirement for "Unamended Sales Literature/Brochure/Copy of Manual".

The BAC's determination was based on the document submitted with the bid and the requirements applicable to that submission, not on an assumption regarding the bidder's ordinary business practice.

IV. On the Assertion of Exclusive Distributorship and Manufacturer Authorization

Mular further states that it is the holder of a Certificate of Exclusive Distributorship and the sole and exclusive authorized distributor of Hilbro products in the Philippines, and that it is authorized to collect brochures, technical literature and other official documents directly from the manufacturer.

The BAC notes the bidder's assertion concerning its distributorship status.

However, distributorship authority and conformity of the specific bid document are separate matters.

The fact that a bidder is an authorized or exclusive distributor does not, by itself, establish that every document submitted by that bidder in a procurement proceeding automatically constitutes the unamended manufacturer's literature required by the Bidding Documents.

Moreover, during the BAC's consideration of the Request for Reconsideration, Mular did not submit documentation from the foreign or principal manufacturer specifically authenticating the

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particular document submitted with its bid. The BAC therefore evaluated the bidder's assertion against the actual document and the objective characteristics observed during technical evaluation.

Accordingly, the bidder's distributorship status does not, in itself, provide sufficient basis to reverse the BAC's determination.

V. On the Authenticity of the Submitted Literature

The BAC's determination concerning the sales literature was based on the specific document submitted with the bid and its conformity with the express requirement for unamended manufacturer's literature.

In considering the Request for Reconsideration, the BAC further compared the submitted literature with an original, unamended HilbroN manufacturer's brochure and found material differences in both presentation and technical information. In particular, the original brochure available to the BAC indicated a filtration capacity of up to 2,000 cycles, whereas the brochure submitted by Mular indicated 5,000 cycles.

This material difference further supports the BAC's determination that the submitted literature could not simply be treated as the unamended manufacturer's literature required under the Bidding Documents.

The BAC therefore finds that the subsequent assertion of authenticity does not sufficiently overcome the objective findings considered during the evaluation and resolution of the Request for Reconsideration.

VI. On the Alleged Introduction of Additional Grounds in the BAC's Reply

The BAC takes note of Mular's assertion that the Reply to the Request for Reconsideration introduced additional grounds for disqualification which were allegedly not stated in the original Notice of Disqualification.

The BAC respectfully clarifies that the identification in the Reply of Items 12, 24, 57, 71 and 78 was not intended to constitute the introduction of a new or separate ground for disqualification.

The original Notice of Disqualification expressly found Mular's bid non-responsive for failure to comply with Bid Data Sheet Clause 12.1 (vii), particularly the requirement to submit "Unamended Sales Literature/Brochure/Copy of Manual." The Notice expressly recorded the finding of "Amended Sales Literature/Brochure/Copy of Manual – Non-responsive."

The identification of Items 12, 24, 57, 71 and 78 in the Reply must therefore be understood in this context. The affected items were supported by the same sales literature whose integrity and compliance with the express requirement for unamended manufacturer's literature had already

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been placed in issue in the original Notice of Disqualification. The subsequent enumeration merely identified the bid items to which the finding concerning the non-responsive sales literature applied; it did not create a new documentary requirement or a new ground that arose only after the Notice of Disqualification.

More importantly, the material issue remained the same throughout the proceedings: whether the bid documents submitted by Mular complied with the Bidding Documents, including the express requirement for unamended manufacturer's sales literature, and whether the submitted documents established conformity with the prescribed Technical Specifications.

The subsequent enumeration of the affected bid items did not alter that issue or cure the deficiencies that already existed in the bid at the time of submission.

VII. On the Subsequent Letter to the Head of the Procuring Entity

The BAC further notes that Mular's letter dated 06 August 2026 was submitted after the BAC had already resolved its Request for Reconsideration.

The letter substantially reiterates the bidder's disagreement with the BAC's determination and raises further assertions concerning the sales literature submitted with its bid, including the circumstances under which the documents were allegedly prepared and obtained from the manufacturer.

In view thereof, the BAC respectfully submits this communication to the Head of the Procuring Entity to clarify the factual and procedural basis of its determination and to address the assertions raised in Mular's subsequent communication.

The BAC emphasizes that its Request for Reconsideration had already been resolved and that the present communication does not reopen or constitute a reconsideration of the Request for Reconsideration previously denied by the BAC. Rather, it is submitted for the information and consideration of the Head of the Procuring Entity in relation to the matters raised in the bidder's subsequent communication.

VIII. BAC Position

After considering the assertions raised in Mular's 06 August 2026 letter against the actual bid documents, the original Notice of Disqualification, the Request for Reconsideration, the BAC's Reply thereto, and the findings of the TWG and End-User, the BAC finds no factual or procedural basis to alter its position.

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Accordingly, the BAC maintains and sustains its previous determination that the bid of Mular Medical Distribution, Inc. is non-responsive.

The BAC respectfully submits the foregoing clarification to the Head of the Procuring Entity for information and consideration.

Very truly yours,

ELGIE J.F. GREGORIO, MD
BAC Chairman

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